

RIGHT TO INFORMATION ACT, 2005

DISTRICT AND SESSIONS COURTS BHIWANI

(Information on 16 Manuals under Section 4.1 (b) of the Right to Information Act, 2005)

MANUAL 1

The Particulars of Organization, Functions and Duties

Particulars

Name of the Organization:	Office of District and Sessions Judge, Bhiwani. Subordinate institution of the Hon'ble Punjab and Haryana High Court, Chandigarh.
Functions of the Organization:	Judicial & Administrative functions.
Duties of the Organization:	i) To exercise the control over the Subordinate Courts functioning in the territorial jurisdiction. ii) To distribute various funds amongst its subordinate authorities received from the Government from time to time. iii) To deal with all correspondences relating to Hon'ble Apex Court and Hon'ble High Court and the Department of law & Justice, Government of Haryana and other departments. iv) To administer justice as per the various legislation/statutes. v) To recruit Class-IV employees with the help of selection Committee. vi) To handle the administration in accordance with the procedural laws, Haryana Civil Services Rules, the Government Resolutions and the Notifications issued by the Hon'ble Apex Court and Hon'ble High Court.

vii) In exercise of administrative function, the organization deals with Transfers, Departmental disciplinary proceedings and promotions etc. of the employees.

viii) The Head of the Organization- The District and Sessions Judge, who is also the Chairman of District Legal Services Authority, Bhiwani under which the Lok-Adalats and various programmes of DLSA are held and legal services are provided.

MANUAL 2

The Powers and Duties of Judicial Officers and Employees

- i) The District and Sessions Judge
- ii) The Principal Judge, Family Court
- iii) The Additional District & Sessions Judges (Fast Track POCSO Court and FTC for Rape Cases) and Exclusive Court to deal with Heinous Crime against women
- iv) The Additional District & Sessions Judges

They deal with the Civil and Criminal matters on appellate side, the cases triable exclusively by Sessions Court and also the matter under special act, they also act as Special Courts viz. MACT, Educational Tribunal, SC/ST Act, PC Act, Electricity Act, Court of ADJ-I, II and other ADJs have been designated as Special Courts and they are functioning as trial Courts as well.

- v) The Civil Judge (Senior Division)-cum-ACJM:-

Deals with the matters of Civil nature having unlimited pecuniary jurisdiction and Criminal Cases.

- vi) The Chief Judicial Magistrate-cum-ACJ(SD):-

Deals with all types of Criminal matters excluding the cases triable by the Court of Sessions and matters of Civil Nature.

- vii) The Additional Civil Judge (Senior Division)-cum-JMIC-cum-PMJJB:-

Deals with all types of Civil and Criminal matters and inquiries of Juvenile Justice Board.

- viii) The Civil Judges (Junior Division)-cum-Judicial Magistrates Ist Class:-

(1) **Vide Notification No. 9Gaz.II/XXI.C.35 dated 05.02.2014**, In supersession of Notification No. 326/Gaz.II/XXI.C.35 dated 28.11.21995, Notification No. 273/Gaz.II/XXI.C.35 dated 11.09.2013 and Notification No. 153/Gaz.II/XXI.C.35 dated 28.11.21995 and in exercise of the powers conferred by Section 26 of the Punjab Courts Act, 1918, Hon'ble The Chief Justice and Judges, have been pleased to redefine the pecuniary jurisdiction of Civil Judges in the State of Punjab, Haryana and U.T., Chandigarh, with effect from the date of notification as follows:-

- (a) Civil Judges (Junior Division) having less than 5 years' experience (including one year training period) shall deal with cases having jurisdictional value upto 10 lacs.
- (b) Civil Judge (Junior Division) having more than 5 years' experience (including one year training period) shall exercise jurisdiction in respect of all cases; and
- (c) Civil Judge (Senior Division) and Addl. Civil Judge (Senior Division) shall exercise jurisdiction in respect of all the cases. Provided further that the Civil Judge (Senior Division) shall broadly examine the suits for declaration; Injunction etc., before entrustment and shall either retain the same or entrust to an Officer having sufficient experience, keeping in view the complexity in the matter.

- (2) Deal with the matters of criminal nature excluding those triable by the Court of Sessions and within the exclusive jurisdiction to the Chief Judicial Magistrate.

Categories of the Employees of Organization.

The various categories of the employees of organization are, as under :-

Group-A/Class-I	: Chief Administrative Officer-cum-Superintendent
Group-C/Class-III	: Section Officer, Reader Grade I, Superintendent Grade-II/Reader Grade-II, Assistants/Reader Grade-III, Stenographer Grade I, II and III, Clerks, Ahlmads, Drivers, Bailiff
Group-D/Class-IV	: Process Server/Peon/Mali/Orderly/Daftri/Mali-cum-Chowkidar Peon/Water-man/Record-lifter/Usher/Sweeper/Chowkidar etc.

Brief Duties of Employees as Defined in Refresher Training Manual Issued by Chandigarh Judicial Academy

Chief Administrative Officer/Superintendent

The Superintendent is the head of Non Judicial Staff and is assisted by number of officials in performance of his duties. In Haryana he is assisted by Superintendent Grade-II, who heads different branches in the court establishment.

General Duties

- * Control over the staff.
- * Assist the District and Sessions Judge in the inspection of Subordinate Courts.
- * Office correspondence.
- * To maintain attendance register of staff.
- * Supervision of Record Room.
- * To maintain ACRs and property returns of officials.
- * Supervision over working of all the branches.
- * Superintendent is also SPIO under the RTI Act.
- * Putting up all the references/matters before District and Sessions Judge after checking it thoroughly.
- * Checking of fine accounts of Courts of Superior Judicial Officers.
- * Checking of returns of property of Judicial Officers, before forwarding the same to Hon'ble High Court.
- * Ensuring compliance of directions of the Hon'ble High Court/District and Sessions Judge.
- * Looking after the punctuality of entire staff of Sessions Division.

Reader Grade I, II , III

- * Putting up the daily files and handling them.
- * Calling of the cases.
- * Affixing stamp on each page and document with date and name of the Court.
- * Checking of the pleadings, court fee, Vakaltname, list of documents, signatures on pleadings, jurisdiction, address of parties, number of copies of plaint, process fee (one time) etc.
- * Communication and dealing with public, litigants, other staff members and lawyers.

- * Ensuring signatures or thumb impression of witnesses and parties under their statements.
- * Ensuring signatures of the presiding Officer on documents.
- * Maintenance of Registers including peshi register (computerised print from C.I.S.), disposal register and fine register. The list of registers to be maintained by the Ahlmad and the Reader has been given in Vol. 4 chapter 24, Appendix Part I and Part II, High Court Rules and Orders.
- * Maintaining list of approved commissioners, list of approved newspapers for publication and unit chart.
- * Maintaining list of legal aid counsels for remand work and trial.
- * Maintenance of Attendance register and casual leave record.
- * Preparation of Jail Warrants.
- * Before consignment of decided cases, the Reader shall attach a certificate that the undisbursed deposit of diet money payable to witnesses and newspaper payments for publication, have been refunded to the depositor.
- * Issuance of Fine Receipt, entries in the fine register and verification thereof.
- * Generating online Bank vouchers, challan vouchers and handing over to the Fine Moharrir.
- * Sending list of cases disposed of during the month to the record keeper.
- * Comparison of disposal register with consignment.
- * Conciliation of the registers and overall supervision of the staff.
- * Preparation of various statements including monthly, quarterly, half yearly, annual statements in coordination with other staff members. He shall also prepare history sheets at the time of Annual Inspection by the Administrative Judge.
- * Maintenance of library in the court/chambers.
- * Maintenance of list of furniture, fixtures and other items in the court and Retiring room of the Presiding Officer.
- * Knowledge of costs and Pleaders' fee to be added in the decree sheets.
- * Getting internal inspection of the Court done by Presiding Officer.
- * Coordination with Ahlmad for preparation of file for arguments.
- * Calculation of the units earned by the court after disposal of each day.
- * Making entries in CIS (Next date and brief proceedings).
- * Maintaining decorum of the Court.
- * Proper framing of succession certificates and probates.

Stenographer and Judgment writer

They are of following grades: Stenographer Grade I , II and III

- * Their duties are governed by Punjab and Haryana Civil Courts (preparation and supply of certified copies of Typewritten Judgment Rules 1982), (Chapter 17A, Volume-4, High Court Rules and Orders).

Stenographer/Judgment Writer are authorized to supply copies of

- a) Appealable interim orders
- b) Judgment

To

- a) Party to a civil case
- b) Party to proceedings of civil nature

In criminal cases also, whenever conviction and sentence is awarded by the Court, the Judgment Writer has to supply copy of judgment and order to the convict, free of cost.

Copying fee:

- * Rs 2/- per page subject to minimum of Rs.5/-.
- * For each additional copy, Rs.1 /- per page in the shape of court fee stamps.
- * Copy to be delivered only after copying fee has been paid.

Authorized by Section 76 of Indian Evidence Act, 1872

- * If copy is on more than one sheet of paper, endorse the word “attested” on every sheet.
- * Cancel the Court fee stamps.
- * Maintenance of register for supply of copies (Vol-I, Chapter-11, Part-A).

Other duties

- * Typing judgments and orders of the judge on computer
- * To attend all other duties assigned by District Judge/Presiding Officers, either by means of Office Orders or Oral Orders.
- * To upload the judgments/orders on CIS.

Ahlmad

General duties of Ahlmad

Before discussing the detailed method for performance of various duties by the Ahlmad, it is necessary that the Ahlmad should know the various stages of trial in civil and criminal cases. The various stages of trial have been depicted in the form of chart in Chapter No. 3 and 4. The Ahlmads are advised to thoroughly acquaint themselves with the same.

Other duties

- * Ahlmad is custodian of all files.

- * To maintain all the relevant registers properly as prescribed by High Court Rules and Orders (Vol.4, Chapter 24, Appendix Part I and II and Vol. 6 Part A-IV, Part B-IV) and as per instructions issued by the Hon'ble High Court.
- * Before starting the work of the day, sort out files received from the Court, fixed for previous day. He shall make necessary compliance of the Court directions in those cases and place the files in the almirah for dates fixed.
- * Submit all files fixed for next day to the Reader before lunch.
- * Register the new institutions in C.I.S. and index the same.
- * To issue processes in the files as ordered by the Court. The format of different processes (Summons, Warrants, Proclamation etc.) are given in schedule II of Cr.P.C. and Appendix B of First Schedule of CPC. Additionally the formats are also given in Vol.6 High Court Rules and Orders.
- * Receive processes from the Process Serving Agency/police in the files fixed for next day and place the same on record. He shall make reports on the order sheets of the concerned file with date under his signatures.
- * To make proper entries in the registers regarding result of the cases and to enter Goshwara number of consignment in the registers.
- * To prepare fresh and complete index of the files for consignment and to consign the same to the record room within the prescribed time.
- * Maintenance and safe custody of judicial files.
- * To prepare of periodical statements.
- * To get files inspected as per rules from the parties/counsel/clerks.
- * To send record, complete in all particulars to copying agency.
- * On receipt of requisition slip, send the record to the quarters concerned.
- * The Goshwara number given by Record Keeper in the challan to be entered in the Court registers, get them checked and compared from the Presiding Officer on the first working day in the months of February, May, August and November with Goshwara numbers entered in the Challan in order to confirm that entries are correctly made.
- * Get all the Court registers inspected quarterly and signed by the Presiding Officers.

Clerks

To handle various assignments such as Bill Clerk, Library Clerk, Copy Clerk, Copyist etc.

Drivers

To do the duties of Driver and to maintain the log book of the Govt. vehicle and maintain the vehicle.

Bailiffs/ Process Servers

To serve the summonses, notices and to execute warrants issued by the Court(s).

Mali/Mali-cum-Chowkidar

To perform the duties of Mali and Chowkidar

Peons

To do all type of menial work assigned by the Head of Organization or by the Presiding Officer.

Chowkidars (Watchmen)

To watch the Court building and premises as per duty roster.

Sweepers

To clean the Court premises and its surroundings, lavatories etc.

MANUAL 3

The Procedure followed in the decision making process, including channels of supervision and accountability.

The below listed rules, regulations, instructions, manuals and records are held by the organization or are being used for its control or discharging its functions by the employees

1. The Civil Manual, 1986
2. The Criminal Manual, 1980
3. The Code of Civil Procedure, 1908
4. The Code of Criminal Procedure, 1973
5. The Haryana Civil Services Rules
6. The Punjab Budget Manual
7. The Punjab Financial Rules
8. The Punjab Treasury Rules
9. High Court Rules and Orders Vol. I, II, III, IV, V & VI
10. The various Government Resolutions, Circulars Gazettes etc. issued by the Government of Haryana and the Resolutions, Circulars and Notifications issued by the Hon'ble High Court and received there from time to time.

MANUAL 4

The norms set for the discharge of its functions:-

As per the guidelines, written directions & norms set by the Hon'ble High Court of Punjab and Haryana, Chandigarh and various resolutions & circulars issued by the Govt. of Haryana as adopted by the Hon'ble High Court from time to time.

MANUAL 5

The Rules, regulations, instructions, manuals and records held by it or under its control or used by its employees for discharging its functions

The following registers (CIS Printed/Manual) and documents are maintained :-

1. The Register for Civil and Criminal Side.
2. The separate registers for the registration of Special Civil Suit, Regular Civil Suit, Small Cause Civil Suits, Regular Darkhast, Precepts, etc. are being maintained by the subordinate Courts.
3. The separate registers for the registration of Regular IPC cases, Act Cases, Summary IPC cases and Miscellaneous Criminal Cases etc. are being maintained by all the Judicial Magistrates.
4. The separate registers for the registration of Regular Civil Appeal, Miscellaneous Civil Appeal and Motor Accident Claims Petitions and it's execution are being maintained in Appellate Court/s.
5. The separate registers for the registration of Sessions Trial Cases, Special Criminal Cases, Criminal Revisions and Miscellaneous Criminal Applications filed before the Sessions Court/s.
6. The Daily Boards, Memorandum Books, Daily Court Fee Registers, Writ Registers and various other Registers are being maintained as per the Civil and Criminal Manual.
7. Service Books of Officers and employees, GPF Account of Class- III & IV employees. The disposed of records of all the Courts are consigned in Judicial Record Room, Bhiwani and Sub Divisions Loharu, Tosham, Siwani and preparation of certified copies in disposed of cases are being prepared and delivered by the Copying Agencies.

MANUAL 6

A statement of the categories of documents that are held by it or under its control.

1. Acts and procedures
2. High Court rules and regulations
3. Civil Services Rules
4. Salary and finance
5. Statistical records
6. Case records
7. Staff records
8. Library records
9. Administrative record
10. Computerized record

MANUAL 7

The particulars of any arrangement that exists for consultation with, or representation by the members of the public in relation to the formulation of its policy or implementation thereof :-

There is no arrangement for consultation with the members of the public in relation to the formulation of any policy or administration thereof.

MANUAL 8

A statement of the boards, councils, committees and other bodies consisting of two or more persons constituted as its part or for the purpose of its advice, and as to whether meetings of those boards, councils, committees and other bodies are open to the public or the minutes of such meetings are accessible for public.

NOT APPLICABLE

MANUAL 9

A directory of Officers and employees :-

S. No.	Name and Designation	Telephone No. (Office)
SESSIONS DIVISION BHIWANI		
District and Sessions Judge		
1.	Dr. Gagandeep Kaur Singh	01664-243144
Superintendent O/o District and Sessions Judge		
2.	Superintendent	01664-243144
Civil Judge (Senior Division)		
3.	Shri Jogender Singh	01664-256790
Chief Judicial Magistrate		
4.	Ms Meeta Kohli	01664-242294
Chief Judicial Magistrate-cum-Secretary, DLSA, Bhiwani		
5.	Shri Pawan Kumar	01664-245934
SUB DIVISION LOHARU		
Additional Civil Judge (Senior Division)		
9.	Shri Devender Singh	01252-258386
SUB DIVISION SIWANI		
Additional Civil Judge (Senior Division)		
10.	Shri Dharampal	01255-278888
SUB DIVISION TOSHAM		
Additional Civil Judge (Senior Division)		
11.	Shri Sunil Kumar	01253-258008

MANUAL 10

The monthly remuneration received by each of its officers and employees, including the system of compensation as provided in its regulations:

Judicial Officers

Pay Scales

1. District and Sessions Judge	:	J-7 199100-224100/-
2. Addl. District and Sessions Judge	:	J-5 144840-194660/-
3. Civil Judge (Sr. Divn.)	:	J-4 122700-180200/-
4. Chief Judicial Magistrate	:	J-4 122700-180200/-
5. Addl. Civil Judge (Sr.Divn.)/JMJC	:	J-3 111000-163030/-
6. Civil Judge (Jr.Divn.)	:	J-1 77840-136520/-

Judicial Employees

Pay Scales

Class-I/Group-A

Chief Administrative Officer-cum-Superintendent	:	FPL-10
---	---	--------

Class-III/Group-C

Reader Grade I	:	FPL-7
Reader Grade II	:	FPL-6
Reader Grade III	:	FPL-6
Stenographer Gr.I	:	FPL-7
Stenographer Gr.II	:	FPL-6
Stenographer Gr.III	:	FPL-4
Clerks	:	FPL-4
Drivers	:	FPL-4
Bailiff	:	FPL-2

Class-IV/Group-D

Process Server	:	DL **
Usher	:	DL **
Peon/Orderly/Chowkidar	:	DL **
Waterman/Sweeper	:	DL **

MANUAL 11

The budget allocated to each of its agency, indicating the particulars of all plans, proposed expenditures and reports on disbursements made :-

As per allocation of the Hon'ble High Court and Government of Haryana under the relevant Head of Accounts.

MANUAL 12

The manner of execution of subsidy programmes, including the amounts allocated and the details of beneficiaries of such programmes :-

NOT APPLICABLE

MANUAL 13

Particulars of recipients of concessions, permits or authorizations granted by it :-

NOT APPLICABLE

MANUAL 14

Details in respect of the information, available to or held by it, reduced in an electronic form :-

The following information is being made available at the official website of Bhiwani Sessions Division and KIOSK Machines installed in the premises in Judicial Courts Complex, Bhiwani and Sub Divisions Charkhi Dadri, Loharu, Siwani and Tosham:

- i. Daily cause lists are being displayed on the website of Bhiwani Sessions Division for the information of Advocates, litigants as well as public at large, besides information regarding latest notifications/instructions of Hon'ble High Court and Recruitment Notices etc.;
- ii. Up-to-date case status is also available on the website of Bhiwani Sessions Division for the convenience of Advocates, litigants and general public;
- iii. The judgments and orders are made available on the website of this Sessions Division;
- iv. Five KIOSK Machines, one at Sessions Division Bhiwani and one each at its Sub-Divisions Charkhi Dadri, Loharu, Siwani and Tosham have been installed to provide inquiry of the cases;
- v. SMS facility is also being provided to the Advocates, litigants and public to know the case status through SMS.
- vi. SMS facility is also being provided to the advocates and applicants to know the status of their applications to get the certified copy of documents.
- vii. Digital Display Boards System have also been installed in each Court Room in the premises of this Sessions Division to provide on-going status of the cases.

MANUAL 15

The particulars of facilities available to citizens for obtaining information, including the working hours of a library or reading room, if maintained for public use :-

Presently, cause list, duty roster of Judicial Officers, list of police stations allocated to the Judicial Officers, list of Judicial Officers and the information regarding Judicial Officers on leave are available on the website of Bhiwani Sessions Division.

There is no Library or reading room in Bhiwani Sessions Division for public use. The Central Library is meant only for the use of Judicial Officers. However, the Public Information Officers are available during office hours on working days.

MANUAL 16

The names, designations and other particulars of the Public Information Officers are as follows:

Sr. No.	Name of the Court	Assistant Public Information Officers	Public Information Officers	Appellate Authority	Land-Line No.	E-mail Address
1	a) Court of District and Sessions Judge and Court of Additional District and Sessions Judges at District Head Quarters. b) Court of Additional District & Sessions Judge at places where there is no District & Sessions Judge	Chief Ministerial Official of the Court of District and Sessions Judge. Senior Ahlmad/ Stenographer	Chief Administrative Officer/Superintendent in the office of District and Sessions Judge. Chief Ministerial Officer of the court of Senior Most Additional District & Sessions Judge	District and Sessions Judge of the respective Sessions Division. Senior Most Additional District & Sessions Judge.	01664-243144	dsjbhw@hry.nic.in
2	Court of Civil Judge (Senior Divn.) includes Courts of Addl. Civil Judge (Senior Divn.) and Civil Judge (Jr. Divn.) at Head-quarter	Chief Ministerial Officer of the Court	Clerk of the Court of the office of Civil Judge (Senior Division)	Civil Judge (Senior Division)	01664-256790	Nil
3	Court of Chief Judicial Magistrate includes Courts of Judicial Magistrates	Senior Most Ahlmad/ Stenographer	Chief Ministerial Officer of the Court	Chief Judicial Magistrate	01664-242294	Nil

	at Head-quarter.					
7	Court of Additional Civil Judge (Senior Division) Loharu.	Senior Most Ahlmad/ Stenographer	Chief Ministerial Officer of the Senior Most Judicial Officer	Civil Judge (Senior Division)	01252-258386	Acjsd.loharu@ajj.gov.in
8	Court of Additional Civil Judge (Senior Division) Siwani.	Senior Most Ahlmad/ Stenographer	Chief Ministerial Officer of the Senior Most Judicial Officer	Civil Judge (Senior Division)	01255-278888	Acjsd.siwani@ajj.gov.in
9	Court of Additional Civil Judge (Senior Division) Tosham.	Senior Most Ahlmad/ Stenographer	Chief Ministerial Officer of the Senior Most Judicial Officer	Civil Judge (Senior Division)	01253-258008	Acjsd.tosham@ajj.gov.in

MANUAL 17

Such other information as may be prescribed and thereafter update these publications every year:

The work of maintenance of Court Building and Residential Quarters of Judicial Officers is being looked-after by the Public Works Department. Besides this, security in the Court Complex is being looked after by the District Police. Close circuit cameras have been installed to monitor each and every movement inside the Judicial Court Complexes.